

SYNTHETIC TRAINING RECORD — NOT FILED — FICTIONAL PARTIES AND
COUNSEL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-26-1427

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff–Appellant,

v.

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC,
Defendants–Appellees.

RESPONSE BRIEF OF APPELLEES

Filed in the exercise: May 8, 2026.

Corporate disclosures

Copper Kestrel and Meridian Silt are fictional privately held limited liability companies. No publicly held company owns ten percent or more of either fictional entity or has a direct financial interest in the outcome. This is not a real disclosure.

Contents

Jurisdictional response	3
Statement and summary	4
Argument	5
Alternative merits response	7
Conclusion	8

Principal authorities: 28 U.S.C. § 1291; Fed. R. Civ. P. 54(b); *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870 (4th Cir. 2022); *McPherson v. Patton*, No. 23-1938 (4th Cir. Oct. 15, 2024) (unpublished).

Jurisdictional response

The notice was timely, but timeliness and finality are separate requirements. Section 1291 permits review of final decisions. Rule 54(b) allows a partial decision to become final only if the district court expressly determines that there is no just reason for delay.

The February 4 order contains no such determination. JA40. It merely grants Asterglen's motion and directs judgment. The separate judgment likewise contains no determination. JA41. Count II and the counterclaim remain. JA27-28, JA47.

The appeal should be dismissed and remanded without reaching the merits. *McPherson* addresses the same structural defect. It is unpublished, but it applies the rule's text and published *Kinsale* framework. Appellees do not rely on it as binding precedent.

Statement and summary

Appellees accept Asterglen's chronology but emphasize three points. First, they warned below that a bare grant would not supply the court's own express determination. JA37. Second, the unresolved claims share the contract, witnesses, communications, and potential offset identified in their opposition. JA34-39. Third, no oral findings exist because no hearing occurred. JA47.

Rule 54(b)'s "only if" language is a condition on the district court's power to direct final judgment. A party cannot make the judicial determination for the court. Nor can an appellate court infer it from intent.

Even an order using the required words would face abuse-of-discretion review. *Kinsale* instructs that the no-just-reason inquiry is case-specific and tilted against fragmentation. Here the same parties remain contestants below, the counterclaim creates a possible setoff, and the same contract evidence could return in a later appeal.

Argument

I. The order lacks the express determination Rule 54(b) requires

The operative sentence says only: "Plaintiff's Motion ... is GRANTED. The Clerk is DIRECTED to enter judgment ... on Count I." JA40. It never says there is no just reason for delay.

The separate judgment says only that judgment is entered on Count I and other matters remain. JA41. A separate document satisfies a different function under Rule 58; it cannot replace Rule 54(b)'s express determination.

In *McPherson*, an unopposed Rule 54(b) motion was granted and a partial judgment entered, but the district court did not expressly make the required determination. The Fourth Circuit dismissed and remanded. That reasoning follows the plain rule and *Kinsale*.

II. Incorporation cannot be inferred

The order does not say it incorporates the motion, adopt proposed findings, or identify a reasoning document. Even incorporation would not convert Asterglen's disputed assertions into the court's case-specific findings without a clear judicial adoption.

III. The record also supplies just reasons for delay

The adjudicated and unadjudicated matters share Section 9.2, the July 8 call, audit evidence, July 22 communication, cure feasibility, and damages evidence. JA34-36. A later appeal could repeat those issues. Copper Kestrel's \$120,000 counterclaim could create an offset. JA16-18, JA36. Asterglen submitted no solvency or extraordinary-hardship evidence. JA31.

These considerations would make certification exceptional even if the required words appeared. *Kinsale* cautions against certification where the parties remain contestants below and claims are intertwined. The Court need not decide abuse of discretion, however, because the threshold express determination is absent.

IV. The proper disposition is dismissal and remand

Without a final decision, the Court cannot retain jurisdiction to solicit findings. Dismissal does not vacate the January 12 merits order; it returns the still-pending action to the district court. That preserves review after a genuinely final judgment or after a valid route authorized by law.

Alternative merits response

If the Court reaches Count I, it should affirm. Section 9.2 expressly required written notice and fifteen days to cure before seeking breach damages. JA7. Asterglen's July 22 email allowed no cure. JA8, JA15. The July 8 statement was not written and was attributed to a project manager without amendment authority. JA7, JA15. Copper Kestrel did not reject cure; it offered to reduce terminals. JA25-27.

But addressing those issues would illustrate the piecemeal-review problem: the same Section 9.2 evidence remains central to Copper Kestrel's counterclaim. The Court should dismiss before reaching them.

Oral argument

Appellees submit that oral argument is unnecessary because Rule 54(b)'s text, *Kinsale*, and the official *McPherson* disposition adequately resolve the threshold issue and the appendix fully presents the operative documents.

Conclusion

The Court should dismiss the appeal for lack of jurisdiction and remand. Its disposition should state that the January 12 partial merits order remains in place and that the contract merits were not reviewed.

/s/ Avery Example, fictional counsel

Certificate: this exercise brief is within its intended page limit and was electronically served May 8, 2026. No real filing or service occurred.